
~~SECOND AMENDED AND RESTATED~~ LIMITED LIABILITY COMPANY AGREEMENT

OF

PARAKEET HOLDCO II MIP, LLC

DATED AS OF ~~JULY 21~~OCTOBER 11, ~~2023~~2024

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Dated as of ~~July 21~~October 11, ~~2023~~2024

The parties to this ~~Second Amended and Restated~~ Limited Liability Company Agreement (this "Agreement") of Parakeet HoldCo II MIP, LLC (the "Company"), a limited liability company organized pursuant to the Delaware Limited Liability Company Act, 6 Del. C. § 18-101 et seq. (the "Act"), dated as of ~~July 21~~October 11, ~~2023~~2024 (the "Effective Date"), are Parakeet ~~MHC~~Holdco II, LLC, a Delaware limited liability company ("Holdco"), and the individuals who may be admitted from time to time as Participant Members of the Company in accordance with Section 2 of this Agreement (collectively, the "Participant Members"). The Manager (as defined herein) and the Participant Members are sometimes referred to collectively as the "Members." Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in Section 13 of this Agreement.

RECITALS

A. The Company was organized on ~~August 30~~October 10, ~~2021~~2024, as a limited liability company under the Act by the filing of the Certificate of Formation of the Company (the "Certificate") with the office of the Secretary of State of the State of Delaware~~, and is governed by the Amended and Restated Limited Liability Company Agreement of the Company, dated as of March 1, 2022 (the "Existing LLC Agreement")~~.

B. As of ~~August 30~~October 11, ~~2021~~2024, the Company became a member of Holdco, which entitles it to receive a portion of the distributions to the equity holders of Holdco pursuant to the ~~Amended and Restated~~ Limited Liability Company Agreement of Holdco, entered into as of ~~September 1, 2022~~October 11, 2024 (as the same may be amended, restated, supplemented or otherwise modified from time to time, the "Holdco LLC Agreement").

C. As provided in the Parakeet HoldCo II MIP, LLC ~~Second Amended and Restated~~ Equity Incentive Plan, a copy of which is annexed as Exhibit A to, and forms a part of, this Agreement (as the same may be amended, restated, supplemented or otherwise modified from time to time, the "Plan"), the Company may issue Management LLC Units to Service Providers of the Holdco Group.

~~D. Pursuant to Section 14.1 of the Existing LLC Agreement, the Existing LLC Agreement may be amended by the Manager (as defined herein), in its sole and absolute discretion, at any time and from time to time, and in any manner; provided that such amendment does not materially and adversely affect a Participant Member (as defined herein) in a disproportionate manner.~~

~~E. The Manager desires to amend the Existing LLC Agreement pursuant to this Agreement, and has determined that this Agreement does not materially and adversely affect any Participant Member in a disproportionate manner.~~

The following are the terms of the Company's Limited Liability Company Agreement:

1. BUSINESS.

The Company shall hold Class P Units of Holdco, shall issue to certain Service Providers membership interests in the Company (in the form of Management LLC Units), and shall conduct any

activities that the Manager determines to be incidental to the Company's acquisition, ownership and disposition of its interest in Holdco.

2. ISSUANCE AND GRANT OF ~~INCENTIVE~~MANAGEMENT LLC UNITS; ADMISSION OF PARTICIPANT MEMBERS.

The Manager from time to time may admit Service Providers as Participant Members of the Company and may issue to them membership interests in the Company designated as Management LLC Units in accordance with and subject to the terms of this Agreement (including the Plan). Each Management LLC Unit shall entitle the holder thereof to receive distributions from the Company of the amounts payable in respect of such Management LLC Unit in accordance with and subject to the Plan. The Plan, or the applicable Separate Agreement, will include the initial Distribution Threshold, and provide for such vesting, forfeiture, and other provisions, with respect to such Management LLC Units. The Plan is hereby incorporated into this Agreement and made a part hereof as if set forth at length herein.

3. MANAGEMENT OF THE COMPANY.

3.1 Manager. Holdco shall be the manager of the Company (the "Manager"); provided, however, that the ~~Board~~Holdco Manager shall be entitled to designate a successor Manager conditioned, and to be effective upon, the consummation of a Sale of Holdco. The Company's business and affairs shall be managed by or under the direction of the Manager and no Participant Member shall have any right to vote or otherwise take part in the management or control of the Company's business or affairs. The Manager, in the performance of its duties as such, shall not owe the Company or its Members any fiduciary duties, including those types of fiduciary duties owed by the directors of a corporation to such corporation and its stockholders under the laws of the State of Delaware, and each Member hereto acknowledges the same and waives any claims it may have against the Manager for breach of such fiduciary duties. The immediately preceding sentence is expressly and unambiguously intended, and shall operate, to be the broadest waiver of fiduciary duties permissible under the law.

3.2 Manager's Membership Interest. The Manager shall not hold any Management LLC Units or any other equity interest in the Company~~, except that the Manager shall be entitled to receive a return of its invested capital in the Company (up to an aggregate of $100.00) upon liquidation or dissolution of the Company~~.

3.3 Powers of Manager. In addition to the powers given to the Manager by law and by other provisions of this Agreement, the Manager shall have full power, in its sole and absolute discretion, to take any action that it considers necessary or desirable in connection with the management of the Company and the conduct of the Company's business purpose. The Manager's powers include, without limitation, (i) the powers set forth in the Plan as administrator thereunder, (ii) the power to exercise all of the Company's rights in connection with all matters relating to Holdco or any of its Subsidiaries or Affiliates (including any action required or permitted to be taken by the Company as a member of Holdco), (iii) the power to make such further agreements, modifications, and determinations with respect to the Company, membership interests in the Company, the Management LLC Units, and all matters incident and ancillary thereto, as the Manager may determine in its sole and absolute discretion and (iv) the power to resign for any reason or no reason and to appoint a successor Manager, as the Manager may determine in its sole and absolute discretion. The Manager's powers include the power to execute and deliver on behalf of the Company all such consents, waivers, documents and agreements as it determines appropriate, in its sole and absolute discretion, in connection with any action taken by it in its

capacity as Manager under this Agreement, and no other signature or consent shall be required on behalf of the Company.

3.4 Officers. The Manager may appoint officers of the Company as the Manager determines desirable in the Manager's sole and absolute discretion. Any such officer shall have such duties, powers and responsibilities as the Manager shall determine. The officers of the Company need not be Participant Members and shall have the powers and duties delegated to them by the Manager. Officers of the Company shall serve at the pleasure of the Manager, and may be removed or replaced with or without cause, from time to time, in the Manager's sole and absolute discretion.

3.5 Persons Employed by the Company. The Manager may employ and reasonably compensate such persons, firms or corporations, including, but not limited to, accountants and attorneys, as the Manager reasonably deems advisable or necessary to carry on, assist or promote the Company's business. In addition, the Manager may utilize the services of persons employed by related persons or entities for tax, accounting, legal and other similar services rendered to the Company. The fact that a Member, or a person associated with a Member, is employed by, or is directly or indirectly interested in or connected with, any person, firm or corporation employed by the Company to render or perform any service shall not prohibit the Manager from employing or otherwise dealing with that person, firm or corporation, and neither the Company nor any of the Members shall have any rights in or to any income or profits derived therefrom.

4. CAPITAL CONTRIBUTIONS AND MEMBERSHIP INTERESTS.

4.1 Capital Contributions. ~~As of the Effective Date, the Manager has contributed $100.00 to the capital of the Company.~~ No Participant Member shall be required to make any capital contribution to the Company.

4.2 Membership Interests. To the extent a membership interest is issued for services rendered to or for the benefit of the Company or Holdco or any Subsidiary or Affiliate thereof, except as otherwise provided, it will constitute a "profits interest" within the meaning of Revenue Procedures 93-27, 1993-2 C.B. 343, and 2001-43, 2001-2 C.B. 191. For the avoidance of doubt, it is intended that all Management LLC Units be treated as profits interests for tax purposes. To that end, the Company and each Member agree that it is the intention of the Members that allocations and distributions to each holder of a Management LLC Unit be limited to the extent necessary so that each Management LLC Unit qualifies as a profits interest, and this Agreement shall be interpreted consistently therewith. The recipient of a profits interest shall be treated as a Member with respect to the entire membership interest from the date such membership interest is issued. Each Member authorizes and directs the Company to, and the Company shall, elect to value such membership interests at their liquidation value on the date of the issuance to the extent such election is permitted pursuant to or in accordance with the finally promulgated successor to Proposed ~~Treasury~~ Regulation Section 1.83-3(l) and Notice 2005-43, 2005-1 C.B. 1221. The Company shall make any allocations of income, gain, loss, deduction or credit required by such successor rules (including any forfeiture allocations). The Company and each Member agree to comply with all of the requirements for such election and, notwithstanding anything in this Agreement to the contrary, authorize the Manager to amend this Agreement to the extent necessary or desirable as a result of such successor rules.

5. DISTRIBUTIONS.

Distributions received by the Company from Holdco in respect of the Company's Class P Units shall be made to the Participant Members pursuant to this Agreement and the Plan in respect of their respective Management LLC Units. The amount (if any) to be distributed to the Company by

Holdco in connection with a distribution made by Holdco to the Holdco Members (either directly or indirectly pursuant to Section 5.03 of the Holdco LLC Agreement) shall be determined as set forth in the Plan and in particular, Article V thereof, and in each case, the Holdco LLC Agreement will provide that such distributions be made to the Company in respect of the Company's Class P Units. The amount and timing of distributions (if any) by the Company to Participant Members in respect of Management LLC Units shall be determined as set forth in the Plan and in particular, Article V thereof. For the avoidance of doubt, distributions may be made after satisfying any accrued and unpaid expenses of the Company.

6. TRANSFERS OF INTERESTS.

Except as otherwise provided in the Plan or a Participant Member's Separate Agreement, no Participant Member may sell, transfer, assign, pledge, grant a security interest in or otherwise dispose of or encumber, directly or indirectly ("Transfer"), all or any portion of his, her or its Management LLC Units (other than Transfers of Vested Management LLC Units by will or by the laws of descent and distribution), and any such purported Transfer shall be void. Each Participant Member shall indemnify the Manager, the Company and any other affected member of the Holdco Group for any and all related expenses and liabilities in the event that such Participant Member Transfers any of his ~~or~~, her or its Management LLC Units in violation of the provisions of this Section 6.

7. EXCULPATION; INDEMNIFICATION.

7.1 Exculpation. To the extent not inconsistent with applicable law, ~~neither~~none of the Manager nor any Member, ~~nor~~Partnership Representative, Designated Individual, or any of their respective officers, directors, employees, partners, managers, members, shareholders or Affiliates, nor any officer of the Company, shall be liable, responsible or accountable in damages or otherwise to the Company or to any Member for any action taken or for any failure to act on behalf of the Company after the date hereof in connection with the business of the Company or the ownership of the Company's interest in Holdco or any of its Affiliates, unless the act or omission was performed or omitted fraudulently.

7.2 Indemnification. To the extent not inconsistent with applicable law, the Company shall indemnify and hold harmless the Partnership Representative, Designated Individual, Manager ~~and the other Members~~ and all of their respective officers, directors, employees, partners, managers, members, shareholders and Affiliates, and all of the Company's officers, from any loss, liability, damage or expense (including, but not limited to, any judgment, award or settlement and attorneys' costs and fees and other costs or expenses incurred in connection with the investigation or defense of any actual or threatened action, proceeding or claim) arising out of (a) any acts or omissions or alleged acts or omissions in connection with their activities or the activities of any of their respective employees or agents on behalf of the Company or in connection with the business of the Company or the ownership of the Company's interest in Holdco or any of its Affiliates, and (b) any liability imposed upon any of them under any statute, rule or regulation applicable to the Company, or their respective officers, directors or employees; provided that the acts or omissions or the alleged acts or omissions upon which the action or threatened action, proceeding or claim is based were not performed or omitted fraudulently by the indemnified party. Any expenses incurred by any such indemnified party in connection with the matters referred to above, may, in the Manager's sole and absolute discretion, be promptly paid or reimbursed by the Company in advance of the final disposition of the proceeding, regardless of whether Holdco, the Company, a Member or any of their respective Affiliates has asserted claims against the indemnified party, upon receipt by the Company of (i) a written affirmation by the indemnified party of his, her or its good faith belief that he, she or it met the standard of conduct necessary for indemnification by the Company, and (ii) a written undertaking by or on behalf of the indemnified party promptly to repay such

amount if it shall ultimately be determined by a court of competent jurisdiction (not subject to further appeal) that he or it has not met that standard of conduct.

8. OTHER ACTION.

8.1 General. Each Member shall execute and deliver such additional documents and instruments, and shall perform such additional acts, as may be necessary or appropriate to carry out the terms of this Agreement and the Plan, as and when requested to do so by the Manager.

8.2 Cooperation. If any transaction involving the sale or other disposition of all or substantially all of the equity interests or assets of Holdco or of the Company is proposed by Holdco or by the ~~Board~~Holdco Manager (or special committee thereof), or any other transaction that could result in a Sale of Holdco is proposed by either of them or any other Sale of Holdco proposed in accordance with the terms of the Holdco LLC Agreement, each Member shall use its reasonable best efforts to support the transaction (and not take any action inconsistent with the transaction) and take all such action as may be reasonably requested by Holdco or the ~~Board~~Holdco Manager (or special committee thereof) to cause the transaction to be consummated at the time and on the terms proposed by Holdco or the ~~Board~~Holdco Manager (or special committee thereof), including, to the extent requested: (a) reviewing and commenting on confidential offering memoranda or similar documents; (b) preparing projections; (c) meeting with representatives of prospective purchasers and participating in management meetings; (d) assisting in connection with the negotiation, documentation and consummation of the proposed transaction; and (e) executing and delivering such agreements and documents as are customary for similar transactions. No distribution shall be made by the Company to any Member who fails to fully and strictly comply in all respects with the provisions of this Section 8.2.

9. DURATION OF COMPANY.

The Company shall continue in existence in perpetuity until the date the Company is dissolved in accordance with Section 10 of this Agreement.

10. DISSOLUTION; LIQUIDATION.

10.1 Dissolution. The Company shall be dissolved only upon the occurrence of one of the following events:

(a) the election by the Manager to dissolve the Company following a Sale of Holdco or any such other time as the Manager reasonably deems appropriate; or

(b) the liquidation and dissolution of Holdco and the final distribution to the Participant Members of proceeds received by the Company, if any, with respect to the Company's interest in Holdco.

11. LIQUIDATION AND DISTRIBUTION OF ASSETS.

Upon dissolution of the Company, the Manager shall proceed to sell or liquidate any assets other than cash (to the extent feasible) within a reasonable time and, after paying or making provision for any liabilities to creditors of the Company, shall distribute the Company's cash and other assets to the Members in accordance with Sections 5.1 and 5.2 of the Plan; provided, however, that any amounts to be returned to the Company in accordance with the Plan and in particular, Article V thereof shall be so

returned by the Company to Holdco and none of the Participant Members shall have any entitlement thereto.

12. ACCOUNTING AND TAX MATTERS.

12.1 Fiscal Year. The Company's fiscal year shall be the calendar year unless changed by the Manager or otherwise required by law.

12.2 Books of Account, etc. Complete and accurate books of account shall be kept by the Company at its principal office (or at such other office as the Manager may designate). The determinations of the Manager with respect to the treatment of any item or its allocation for federal, state or local income tax purposes shall be binding upon all Members so long as that determination is legally permissible and not inconsistent with any express provision of this Agreement.

12.3 Tax Information. As soon as practicable after the end of each fiscal year, the Manager shall furnish to each Participant Member any information with respect to the Company for such fiscal year as shall enable that Participant Member to prepare any income tax return that he or she is required to file for that year. The Company shall also furnish tax information to the Members on an interim basis to the extent the Manager determines appropriate in the Manager's sole and absolute discretion. The Members shall not have any right to information, except for such information as is required to complete their tax returns. The Manager may, but shall not be required to, furnish such other information as the Manager deems appropriate, in the Manager's sole and absolute discretion. Section 18-305(a) of the Act (entitled "Access to and Confidentiality of Information; Records") shall not apply to or be incorporated into this Agreement for any Participant Member, and each Participant Member hereby expressly waives any and all rights under such section of the Delaware Act.

12.4 Capital Accounts. A Capital Account shall be established and maintained for each Member in accordance with the following provisions:

(a) To each Member's Capital Account, there shall be credited such Member's capital contributions (if any), such Member's distributive share of Net Profits, and any items in the nature of income or gain that are specially allocated pursuant to this Agreement, and the amount of any liabilities of the Company that are assumed by such Member, or that are secured by any assets of the Company distributed to such Member.

(b) To each Member's Capital Account, there shall be debited the amount of cash and the Gross Asset Value of any Company assets distributed to such Member pursuant to any provision of this Agreement, such Member's distributive share of Net Losses, and any items in the nature of expenses or losses that are specially allocated pursuant to this Agreement, and the amount of any liabilities of such Member assumed by the Company or that are secured by any property contributed by such Member to the Company.

(c) If ownership of any membership interest in the Company is assigned in accordance with the terms of this Agreement, the assignee shall succeed to the Capital Account of the assignor to the extent it relates to the assigned membership interest.

(d) In determining the amount of any liability for purposes of Sections 12.4(a) and 12.4(b) above, there shall be taken into account Code Section 752(c) and any other applicable provisions of the Code and Regulations.

(e) To each Member's Capital Account, there shall be debited or credited, as the case may be, such adjustments as are necessary to reflect a revaluation of Company assets to reflect the Gross Asset Value of all Company assets, as required by Regulations Section 1.704-1(b)(2)(iv)(f).

The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Code Section 704 and Regulations Section 1.704-1(b) and shall be interpreted and applied in a manner consistent with such Regulations. The Company shall make any adjustments that are necessary or appropriate to maintain equality between the Capital Accounts of the Members and the amount of Company capital reflected on the Company's balance sheet as computed for book purposes in accordance with Regulations Section 1.704-1(b)(2)(iv)(q).

12.5 Allocation of Net Income and Net Losses.

(a) After giving effect to the special allocations set forth in Section 12.6 and subject to the other provisions of this Section 12.5, Net Profits or Net Losses for any fiscal year or other relevant period shall be allocated among the Members in such a manner that, as of the end of such fiscal year or other relevant period, with respect to each Member, the sum of (i) the Capital Account of such Member, (ii) such Member's share of Company Minimum Gain and (iii) such Member's Member ~~Nonrecourse Debt~~ Minimum Gain shall, as nearly as possible, be equal to the net amount, positive or negative, that would be distributed to such Member or for which such Member would be liable to the Company under this Agreement and the Plan, determined as if the Company were to, on the last day of the fiscal year or other relevant period, (x) sell all of the assets of the Company for an amount equal to their respective Gross Asset Values, (y) satisfy all debts in accordance with their terms (limited, with respect to each nonrecourse liability, to the Gross Asset Value of the assets securing such liability), and (z) distribute the remaining proceeds of such sale in liquidation pursuant to Sections 5.1 and 5.2 of the Plan, all of the foregoing computed after all actual distributions or Capital Contributions have been made for such fiscal year or other relevant period. All outstanding Management LLC Units will be treated as vested in connection with the foregoing hypothetical liquidation.

(b) The Manager shall make such allocations for tax purposes, and any modifications to this Agreement, as may be required to comply with Code Section 704(c) and the Regulations thereunder.

(c) Except as otherwise provided in this Agreement, items of taxable income, gain, loss, deduction, and credit shall be allocated among the Members for income tax purposes in a manner consistent with the allocations made for "book purposes" as provided in this Agreement. Taxable income or loss for any fiscal year that is not allocated pursuant to the preceding sentence and that is not otherwise allocated pursuant to the terms of this Agreement shall be allocated among the Members for tax purposes in the same proportion that Net Profit or Net Loss has been allocated for that fiscal year.

(d) Notwithstanding the other provisions of this Agreement, the Manager is authorized to make any adjustment in the allocation of Net Profit or Net Loss if the Manager considers in good faith that the adjustment is necessary and equitable to address issues not specifically dealt with in this Agreement, to correct errors in allocations caused by errors in unaudited financial information, or to correct inequities that may arise under this Agreement.

(e) No Member shall treat a Company item on its federal, state, or local income tax return in a manner inconsistent with the treatment of the item on the Company's federal, state, or local income tax return.

(f) In its sole and absolute discretion, the Manager may adjust allocations made in connection with a Sale of Holdco so that, on an aggregate basis, the net allocations of Net Profit (in excess of Net Loss) made to each Member for all accounting periods, including the final accounting period following such Sale of Holdco, shall equal, as closely as possible, the total amount of distributions that the Member is likely to receive in excess of that Member's capital contributions.

12.6 Regulatory Allocations. Notwithstanding any other provision of this Agreement, the following special allocations shall be made in the following order:

(a) Minimum Gain Chargeback. ~~If~~Notwithstanding any other provision of this Section 12, if there is a net decrease in Company Minimum Gain during any fiscal year or other relevant period, each Member shall be specially allocated items of Company income and gain for such fiscal year or other relevant period (and, if necessary, for subsequent fiscal years or periods) in an amount equal to such Member's share of the net decrease in Company Minimum Gain, as determined under Regulations Section 1.704-2(g). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with Regulations Sections 1.704-2(f)(6) and 1.704-2(j)(2). This Section 12.6(a) is intended to comply with the "minimum gain chargeback" requirements of Regulations Section 1.704-2(f) and shall be interpreted consistently therewith.

(b) ~~Chargeback Attributable to Member Nonrecourse Debt. If~~Member Minimum Gain. Notwithstanding any other provision of this Section 12 (except Section 12.6(a), which shall be applied first), if there is a net decrease in Member Minimum Gain attributable to a Member Nonrecourse Debt during any fiscal year or other relevant period, each Member with a share of Member Minimum Gain attributable to a Member Nonrecourse Debt at the beginning of such fiscal year or other relevant period shall be specially allocated items of income and gain for such fiscal year or other relevant period (and, if necessary, for subsequent fiscal years or periods) in an amount equal to such Member's share of the net decrease in Member Minimum Gain attributable to a Member Nonrecourse Debt, determined in accordance with Regulations ~~Section~~Sections 1.704-2(i)(4) and (5). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with Regulations Sections 1.704-2(i)(4) and 1.704-2(j)(2)(i). This Section 12.6(b) is intended to comply with the "partner minimum gain chargeback" requirements of Regulations Section 1.704-2(i)(4) and shall be interpreted consistently therewith.

(c) Qualified Income Offset. If any Member unexpectedly receives any adjustment, allocation or distribution described in Regulations Sections 1.704-1(b)(2)(ii)(d)(4), (5) or (6) which results in an Adjusted Capital Account Deficit for the Member, such Member shall be allocated items of income and gain in an amount and manner sufficient to eliminate such Adjusted Capital Account Deficit as quickly as possible; provided that, an allocation pursuant to this Section 12.6(c) shall be made if and only to the extent that such Member would have an Adjusted Capital Account Deficit after all other allocations provided for in this Section 12 have been tentatively made as if this Section 12.6(c) were not in this Agreement. This Section 12.6(c) is intended to constitute a "qualified income offset" as provided by Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

(d) Member Nonrecourse Deductions. Any Member Nonrecourse Deductions for any fiscal year or other period shall be allocated to the Members who ~~bears~~bear the Economic Risk of Loss with respect to the Member Nonrecourse Debt to which such Member Nonrecourse Deductions are attributable in accordance with Regulations Section 1.704-2(~~b)(4~~i).

(e) Nonrecourse Deductions. Any Nonrecourse Deductions (as defined in Regulations Section 1.704-2(b)(1)) for any fiscal year or other period shall be specially allocated to the Members in the same manner that Net Profits and Net Losses are allocated under Section 12.5 for the applicable fiscal year.

(f) Regulatory Allocations. The allocations set forth in this Section 12.6 (the "Regulatory Allocations") are intended to comply with certain requirements of the applicable Regulations promulgated under Code Section 704(b). Notwithstanding any other provision of this Agreement, the Regulatory Allocations shall be taken into account in allocating Net Profits, Net Losses and other items of income, gain, loss and deduction to the Members for Capital Account purposes so that, to the extent possible, the net amount of such allocations of Net Profits, Net Losses and other items shall be equal to the amount that would have been allocated to each Member if the Regulatory Allocations had not occurred.

12.7 Section 754 Election. The Manager may, in the Manager's sole and absolute discretion, cause the election provided for in Code Section 754 to be made.

12.8 ~~New~~ Partnership Audit Rules.

(a) The Company will, with respect to any "final partnership adjustment" (as such term is defined for purposes of Code Section 6226(a) or any successor provision), make the election provided for in Code Section 6226(a) or any successor provision, unless otherwise decided by the ~~Board~~Holdco Manager, in its sole and absolute discretion. The Company's Partnership Representative for purposes of the ~~New~~ Partnership Audit Rules will be the Manager or such other Member or eligible third party as the ~~Board~~Holdco Manager may designate in writing. If a Member or other third party serves as the Partnership Representative, such Member or other third party shall at times be subject to the direction of the ~~Board~~Holdco Manager. The ~~Board~~Holdco Manager is authorized to change the Company's Partnership Representative by designating a new Partnership Representative in writing to the extent permitted under the Regulations that implement the ~~New~~ Partnership Audit Rules (the "Designated Individual," and together with the Partnership Representative, the "Tax Representative"). With respect to any period in which any non-individual is the Partnership Representative, the ~~Board~~Holdco Manager shall cause the Company to appoint an individual eligible to be a "designated individual" under the ~~New~~ Partnership Audit Rules through whom the Partnership Representative will act for all purposes of the ~~New~~ Partnership Audit Rules.

(b) By executing this Agreement, each Member (i) expressly authorizes the Tax Representative and the Company to take any and all action that is reasonably necessary under applicable federal income tax law (as such law may be revised from time to time) to cause the Company to make the election set forth in Code Section 6226(a) if the Tax Representative decides to make such election, and (ii) expressly agrees to take any action, and furnish the Tax Representative with any information necessary, to give effect to such election. No Member shall file a notice with the Internal Revenue Service under Code Section 6222(c)(1)(B) in connection with such Member's intention to treat an item on such Member's U.S. federal income tax return in a manner that is inconsistent with the treatment of such item on the Company's U.S. federal income tax return.

(c) ~~(b)~~ Promptly following the written request of the ~~Partnership~~Tax Representative, the Company shall, to the fullest extent permitted by law, reimburse and indemnify the ~~Partnership~~Tax Representative ~~(and any "designated individual")~~ for all reasonable, documented, out-of-pocket expenses, including reasonable legal and accounting fees, claims, liabilities, losses and damages incurred by the ~~Partnership~~Tax Representative (~~in its capacity as such)(and any "designated individual,"~~ in its capacity as such) in connection with any administration or judicial proceedings (i) with

respect to the tax liability of the Company; and/or (ii) with respect to the tax liability of the Members in connection with the operations of the Company.

(d) Each Member shall indemnify and hold harmless the Company, the Managers and the Tax Representative for such Member's respective portion of the financial burden of any "imputed underpayment" (as determined under Code Section 6225) and associated interest, adjustments to tax and penalties arising from an entity-level adjustment that are imposed on the Company in accordance with the terms of Section 5.4 of the Plan.

(e) ~~(c)~~ The provisions of this Section 12.8 shall survive the termination of the Company or the termination of any membership interests and shall remain binding on the Members for as long a period of time as is necessary to resolve with the Internal Revenue Service any and all matters regarding the U.S. federal income taxation of the Company or the Members (relating to the operations of the Company).

~~(d) The Partnership Representative shall, on a reasonably timely basis, provide the Company with copies of all notices received by the Partnership Representative in connection with any proceeding or potential adjustment relating to the Company that is subject to the New Partnership Audit Rules.~~

13. DEFINITIONS.

Capitalized terms used in this Agreement without definition shall have the meanings set forth below. The singular includes the plural, and the masculine gender includes the feminine and neuter genders, and vice versa, as the context requires.

"Act" has the meaning set forth in the preamble to this Agreement.

"Adjusted Capital Account Deficit" means, with respect to any Member, the deficit balance, if any, in such Member's Capital Account as of the end of the relevant fiscal year or other relevant period, after giving effect to the following adjustments:

(a) credit to such Capital Account any amounts which such Member is obligated to restore pursuant to any provision of this Agreement or is deemed to be obligated to restore pursuant to the next to the last sentences of Regulations Sections 1.704-2(g)(1) and 1.704-2(i)(5) after taking into account any changes during such year in Company Minimum Gain and Member Minimum Gain; and

(b) debit to such Capital Account the items described in Regulations Section 1.704-1(b)(2)(ii)(d)(4), (5) and (6).

The foregoing definition of Adjusted Capital Account Deficit is intended to comply with the provisions of Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

"Affiliate" means, with respect to any Person, any other Person that Controls, is Controlled by, or is under common Control with such Person; and the term "Affiliated" has a meaning correlative to the foregoing. No Holdco Member shall be deemed to be an Affiliate of another Holdco Member solely due to a Holdco Member's membership interest in Holdco or by virtue of the Holdco LLC Agreement.

"Agreement" has the meaning set forth in the preamble to this Agreement.

~~"Board" means the board of managers of Holdco.~~

"Capital Account" means, with respect to any Member, the capital account that the Company establishes and maintains for such Member pursuant to Section 12.4 of this Agreement.

"Certificate" has the meaning set forth in the recitals to this Agreement.

"Code" means the Internal Revenue Code of 1986, as amended.

"Company" has the meaning set forth in the preamble to this Agreement.

"Company Minimum Gain" has the meaning ascribed to the term "partnership minimum gain" in the Regulation Sections 1.704-2(b)(2) and 1.704-2(d).

"Control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ownership of voting securities, by contract or otherwise, and the terms "Controlling" and "Controlled" shall have meanings correlative thereto.

"Depreciation" means an amount equal to the depreciation, amortization or other cost recovery deduction allowable with respect to an asset for the fiscal year or other period, except that if the Gross Asset Value of an asset differs from its adjusted tax basis at the beginning of the fiscal year or other period, Depreciation will be an amount which bears the same ratio to the beginning Gross Asset Value as the federal income tax depreciation, amortization or other cost recovery deduction for the fiscal year or other period bears to the beginning adjusted tax basis; provided, however, that if the federal income tax depreciation, amortization or other cost recovery deduction for the fiscal year or other period is zero, Depreciation will be determined by reference to the beginning Gross Asset Value using any reasonable method selected by the ~~Board~~Holdco Manager.

"Designated Individual" means the Person designated as set forth in Section 12.8(a).

"Distribution Threshold" has the meaning set forth in the Plan.

"Economic Risk of Loss" shall have the meaning specified in Regulations Section 1.752-2.

"Effective Date" has the meaning set forth in the preamble to this Agreement.

~~"Existing LLC Agreement" has the meaning set forth in the recitals to this Agreement.~~

"Gross Asset Value" means, with respect to any asset of the Company, the asset's adjusted basis for federal income tax purposes, except as follows:

(a) The initial Gross Asset Value of any asset contributed by a Member to the Company shall be the gross fair market value of such asset, as determined by the Manager, in the Manager's sole and absolute discretion.

(b) The Gross Asset Values of all Company assets, including goodwill, going concern value, and similar intangible assets, shall be adjusted to equal their respective gross fair market values in connection with (and to be effective immediately prior to) the following events: (i) the acquisition of an additional membership interest in the Company by any new or existing Member in exchange for more than a *de minimis* capital contribution; (ii) the distribution by the Company to a Member of more than a *de minimis* amount of property (including cash) as consideration for an interest in

the Company; (iii) the grant of an interest in the Company (other than a *de minimis* interest) as consideration for the provision of services to or for the benefit of the Company by an existing Member acting in the capacity of a Member or by a new Member acting in the capacity of a Member or in anticipation of being a Member; or (iv) the liquidation of the Company within the meaning of Regulations Section 1.704-1(b)(2)(ii)(g); *provided, however*, that an adjustment pursuant to clauses (i), (ii) or (iii) above shall be made only if such adjustment is necessary or appropriate to reflect the relative economic interests of the Members in the Company.

(c) The Gross Asset Value of any Company asset distributed to any Member shall be the gross fair market value of such asset on the date of distribution.

(d) The Gross Asset Values of Company assets shall be increased (or decreased) to reflect any adjustments to the adjusted bases of such assets pursuant to Code Section 734(b) or Code Section 743(b), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Regulations Section 1.704-1(b)(2)(iv)(m) and the provisions with respect to Regulatory Allocations hereof; provided, however, that Gross Asset Values shall not be adjusted pursuant to this paragraph to the extent they were adjusted pursuant to paragraph (b) above in connection with a transaction that otherwise would result in an adjustment pursuant to this paragraph.

(e) To the extent an adjustment to the adjusted tax basis of any asset pursuant to Code Section 734(b) or Code Section 743(b) is required pursuant to Regulations Section 1.704-1(b)(2)(iv)(m)(4) to be taken into account in determining Capital Accounts as a result of a distribution other than in liquidation of a Member's interest in the Company, the amount of such adjustment shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis of the asset) from the disposition of the asset and shall be taken into account for purposes of computing Net Profits and Net Losses.

(f) If the Gross Asset Value of an asset has been determined or adjusted pursuant to this Section, such Gross Asset Value shall thereafter be adjusted by the Depreciation taken into account with respect to such asset for purposes of computing Net Profits and Net Losses.

"Holdco" has the meaning set forth in the preamble to this Agreement.

"Holdco Group" has the meaning set forth in the Plan.

"Holdco LLC Agreement" has the meaning set forth in the recitals to this Agreement.

"Holdco Manager" means the manager of Holdco.

"Management LLC Units" has the meaning set forth in the Plan.

"Manager" has the meaning set forth in Section 3.1~~(a)~~.

"Member Minimum Gain" has the meaning ascribed to the term "partner nonrecourse debt minimum gain" in Regulations Section 1.704-2(i)(2).

"Member Nonrecourse Debt" has the meaning ascribed to the term "partner nonrecourse debt" in Regulations Section 1.704-2(b)(4).

"Member Nonrecourse Deductions" means items of Company loss, deduction, or Code Section 705(a)(2)(b) expenditures that are attributable to Member Nonrecourse Debt within the meaning of Regulations Section 1.704-2(i).

"Members" has the meaning set forth in the preamble to this Agreement.

"Net Profits" and "Net Losses" means, for any fiscal year or period, an amount equal to the Company's taxable income or loss for such year or period, determined in accordance with Code Section 703(a) (for this purpose, all items of income, gain, loss or deduction required to be stated separately pursuant to Code Section 703(a)(1) shall be included in taxable income or loss), with the following adjustments:

(a) Any income of the Company that is exempt from federal income tax and not otherwise taken into account in computing Net Profits or Net Losses shall be added to such taxable income or loss;

(b) Any expenditures of the Company described in Code Section 705(a)(2)(B) or treated as Code Section 705(a)(2)(B) expenditures pursuant to Regulations Section 1.704-1(b)(2)(iv)(i) and not otherwise taken into account in computing Net Profits or Net Losses shall be subtracted from Net Profits or Net Losses;

(c) Gains or losses resulting from any disposition of Company asset with respect to which gains or losses are recognized for federal income tax purposes shall be computed with reference to the Gross Asset Value of the Company asset disposed of, notwithstanding the fact that the adjusted tax basis of such Company asset differs from its Gross Asset Value;

(d) In lieu of the depreciation, amortization and other cost recovery deductions taken into account in computing the taxable income or loss, there will be taken into account Depreciation;

(e) If the Gross Asset Value of any Company asset is adjusted pursuant to the definition of "Gross Asset Value," the amount of the adjustment will be taken into account as gain or loss from the disposition of the asset for purposes of computing Net Profits or Net Losses; and

(f) Notwithstanding any other provision of this subsection, any items of income, gain, loss or deduction that are specially allocated shall not be taken into account in computing Net Profits or Net Losses.

"~~New~~ Partnership Audit Rules" means the provisions of Subchapter C of Chapter 63 of the Code, as revised by Section 1101 of the Bipartisan Budget Act of 2015, as such provisions may thereafter be amended and including Regulations or other guidance issued thereunder.

"Participant Members" has the meaning set forth in the preamble to this Agreement.

"Partnership Representative" has the meaning provided to such term in the ~~New~~ Partnership Audit Rules.

"Person" means a natural person, partnership (whether general or limited), limited liability company, trust, estate, association, corporation, custodian, nominee or any other individual or entity in its own or any representative capacity.

"Plan" has the meaning set forth in the recitals to this Agreement.

"Regulations" mean, unless the context clearly indicates otherwise, the regulations in force as final or temporary that have been issued by the U.S. Department of Treasury pursuant to its authority under the Code, and any successor regulations.

"Regulatory Allocations" has the meaning set forth in Section 12.6(f).

"Sale of Holdco" has the meaning set forth in the Plan.

"Separate Agreement" has the meaning set forth in the Plan.

"Service Provider" has the meaning set forth in the Plan.

"Subsidiary" means, with respect to any specified Person (the "parent") at any date, (a) any other corporation, limited liability company, association or other business entity of which, (i) securities or other ownership interests representing more than 50% of the voting power thereof or (ii) the majority interest in the capital or profits of such corporation, limited liability company, association or other business entity, are owned, controlled or held by the parent and/or one or more Subsidiaries of the parent and (b) any other Person that is otherwise Controlled by the parent and/or one or more Subsidiaries of the parent.

"Tax Representative" has the meaning set forth in Section 12.8(a).

"Transfer" has the meaning set forth in Section 6.

"Vested Management LLC Unit" has the meaning set forth in the Plan.

14. MISCELLANEOUS.

14.1 Entire Agreement; Amendment~~. This Agreement amends, restates and supersedes, in its entirety, the Existing LLC Agreement, and the Existing LLC Agreement is hereby terminated~~. This Agreement (together with the Plan and each Participant Member's Separate Agreement (as to that Participant Member)) and the Holdco LLC Agreement contain a complete statement of the arrangements among the Members with respect to the Company and supersedes all prior agreements and understandings among them with respect to the Company. This Agreement may be amended, modified or supplemented or any provision herein may be waived, in each case, by the Manager, in its sole and absolute discretion, at any time and from time to time, and in any manner (including, without limitation, to change the number of Management LLC Units that may be issued by the Company or to resign and/or appoint a successor Manager); provided, however, that no amendment, modification, supplement or waiver that materially and adversely affects a Participant Member (other than any amendment, modification, supplement or waiver that affects all Participant Members in a proportional manner or that are made to reflect changes in the capital structure of Holdco or are made in connection with any merger, consolidation or other business combination) may be made without the written approval of the Participant Member who would be disproportionately affected thereby; provided, further, however, notwithstanding the foregoing, the Manager may change the aggregate number of Management LLC Units even if such change would dilute then existing Participant Members. All amendments, modifications, supplements or waivers to this Agreement approved pursuant to this Section 14.1 shall be binding upon all Participant Members (whether or not such Participant Member consented to such amendment, modification, supplement or waiver). Notwithstanding anything in this Agreement to the contrary, the Company, Holdco and any other member of the Holdco Group (as applicable), shall have

general authority to enter into one or more Separate Agreements with a Participant Member and neither the Company nor Holdco nor any of Holdco's Subsidiaries or Affiliates (as applicable) shall be prohibited or precluded by this Agreement from entering into any such Separate Agreement on terms that deviate from the terms of this Agreement.

14.2 Notices. Any notice or other communication under this Agreement, the Plan or any Separate Agreement (unless otherwise expressly specified therein) shall be in writing and shall be considered given when delivered in person or sent by facsimile or email (with evidence confirming receipt), one (1) business day after being sent by a major overnight courier or five (5) days after being mailed by registered mail, return receipt requested. Notices to any Member shall be addressed to such Member at the address maintained for the Member on the books and records of the Company. Any Member may, by notice to the Company, specify any other address for the receipt of all notices.

14.3 Governing Law. This Agreement shall be governed by and construed in accordance with the law of the State of Delaware applicable to agreements made and to be performed in Delaware, without reference to the choice of law provisions thereof.

14.4 Waiver of Trial by Jury. EACH PARTY ACKNOWLEDGES AND AGREES THAT ANY CONTROVERSY THAT MAY ARISE UNDER THIS AGREEMENT OR ANY AGREEMENT EXECUTED PURSUANT TO OR IN CONNECTION WITH THIS AGREEMENT IS LIKELY TO INVOLVE COMPLICATED AND DIFFICULT ISSUES, AND THEREFORE IT HEREBY IRREVOCABLY AND UNCONDITIONALLY WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LITIGATION DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY AGREEMENT EXECUTED PURSUANT TO OR IN CONNECTION WITH THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY. EACH PARTY CERTIFIES AND ACKNOWLEDGES THAT (I) NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER, (II) IT UNDERSTANDS AND HAS CONSIDERED THE IMPLICATIONS OF SUCH WAIVER, (III) IT MAKES SUCH WAIVER VOLUNTARILY, AND (IV) IT HAS BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION 14.4.

14.5 Severability. If any term or provision of this Agreement or any application of this Agreement shall be declared or held invalid, illegal, or unenforceable, in whole or in part, whether generally or in any particular jurisdiction, such provision shall be deemed amended to the extent, but only to the extent, necessary to cure such invalidity, illegality, or unenforceability, and the validity, legality, and enforceability of the remaining provisions, both generally and in every other jurisdiction, shall not in any way be affected or impaired thereby.

14.6 Headings. The headings in this Agreement are solely for the convenience of reference and shall not affect its interpretation.

14.7 Counterparts. This Agreement may be executed in separate counterpart copies, but such counterparts taken together shall constitute one and the same instrument.

[Remainder of Page Intentionally Left Blank]

IN WITNESS WHEREOF, the undersigned has executed this Agreement as of the day and year first above written.

Parakeet ~~MHC~~Holdco II, LLC

By:_____
Name: ~~Austin Berk~~
Title: ~~Chief Executive Officer~~

EXHIBIT A

Parakeet HoldCo II MIP, LLC ~~Second Amended and Restated~~ Equity Incentive Plan

[*See attached*]

Summary report: **Litera Compare for Word 11.7.0.54 Document comparison done on 10/10/2024 4:20:46 PM**	
Style name: Default Style	
Intelligent Table Comparison: Active	
Original DMS: iw://imanage.lowenstein.com/DBIWOV2/217368037/1	
Modified DMS: iw://imanage.lowenstein.com/DBIWOV2/217368037/6	
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~~Delete~~	71
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Table Insert	0
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Table moves to	0
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Embedded Excel	0
Format changes	0
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